

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUFR064397: DAVID S. KRAMER vs ROBERT OSE
07/20/2026 in Department 43
Demurrer and Motion to Strike

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Demurrer of Defendant Robert Ose

Tentative Ruling: The Demurrer of Defendant Robert Ose is OVERRULED. The complaint sufficiently pleads delayed discovery of the alleged failed annuities. (Complaint at ¶¶13 and 14). The complaint also sufficiently pleads representations made by Defendant, existence of a fiduciary relationship, reliance by Plaintiff, and damages incurred by Plaintiff. (Complaint at ¶5-¶17) Defendant's argument that the contracts disclosed the actual performance and Plaintiff had constructive knowledge of their terms is not resolvable on demurrer. The question of whether a fiduciary has made a full disclosure, as required by law is one of fact. The Court overrules the demurrer to the "churning" cause of action because whether the number of trades is excessive is a question of fact and is not resolvable on demurrer. (See *Twomey v. Mitchum, Jones & Templeton, Inc.* (1968) 262 Cal. App. 2nd 690.)

The amended request for judicial notice of the annuity contracts is DENIED. They are not attached to the complaint or otherwise referenced by instrument number in the complaint. While it is possible that they are the same contracts as those at issue, judicial notice of them is not proper.

Defendant is granted leave to file an answer to the complaint on or before August 8, 2026.

Plaintiff is ordered to serve notice of the Court's ruling.